THE STATE
versus
TINASHE MAISVA

HIGH COURT OF ZIMBABWE
MAMBARA J
HARARE; 23 September 2025

Criminal Review

MAMBARA J:

Introduction and Background

This matter came before the High Court on automatic review in terms of the law, following concerns raised about the trial magistrate's jurisdiction and handling of sentencing. The accused, Tinashe Maisva (aged 27), was convicted by a magistrate at Chitungwiza of "having sexual intercourse with a young person" in contravention of section 70(1)(a) of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*]. The complainant was a 16-year-old girl with whom the accused had a consensual sexual relationship. Importantly, both the accused and the complainant are HIV-positive, a fact which engages the special sentencing provisions of section 80 of the same Act.

Upon conviction, which was based on the accused's guilty plea, the trial magistrate sentenced the accused to 14 months' imprisonment, of which 4 months were suspended on condition of good behaviour, leaving an effective 10-month custodial term. No inquiry was made into "special circumstances" as required by section 80 of the Code, despite the HIV status of the parties. The Regional Magistrate, upon routine scrutiny of the proceedings, queried whether the trial magistrate had the jurisdiction to deal with a matter that potentially attracted a mandatory minimum sentence far exceeding a magistrate's ordinary sentencing powers. The case was accordingly referred to the High Court for review and correction of the apparent irregularity.

Legal Framework: Section 70(1) Offence and Section 80 Mandatory Sentencing

Under Zimbabwean law, sexual intercourse with a young person (someone below the age of consent) is a criminal offense in terms of section 70(1)(a) of the Criminal Law Code. Ordinarily, this offence carries a penalty at the discretion of the court, often a fine or

imprisonment up to a certain limit. However, section 80 of the Code imposes a special sentencing regime when certain aggravating circumstances are present – notably when the offender's conduct posed a risk of transmitting HIV to the victim. Section 80(1)(c) explicitly covers the scenario of sexual intercourse with a young person *"involving any penetration… that incurs the risk of transmission of HIV"*. If it is proven that at the time of the offence the accused was infected with HIV, the law mandates that "he or she shall be sentenced to imprisonment for a period of not less than ten years". This 10-year term is a statutory minimum sentence intended as a harsh deterrent in cases of potential HIV transmission.

Importantly, section 80 provides a saving provision in the form of "special circumstances." If the convicted person *"satisfies the court that there are special circumstances peculiar to the case, which circumstances shall be recorded by the court, why the [minimum] penalty… should not be imposed,"* then the court may depart from the 10-year minimum and impose an appropriate lesser sentence under the ordinary penalty provisions of the law. In other words, absent special circumstances, the court has no discretion – it must impose at least ten years' imprisonment. Only if special circumstances peculiar to the case are proved to the court's satisfaction (and entered into the record) is the court's normal sentencing discretion restored. These provisions are peremptory. The onus is on the accused to prove the existence of special circumstances, and the court must inquire into and explicitly record such circumstances if it proposes to avoid the mandatory minimum.

In the present case, the fact that both the accused and complainant were HIV-positive should have immediately alerted the trial court to the applicability of section 80. The law is clear that the mandatory sentence is triggered by the mere fact of exposing someone to the risk of HIV transmission, *"irrespective of whether transmission actually occurs"*. The rationale is that one should be punished for endangering the victim by potentially exposing them to HIV, even if, by providence or as in this case by the complainant's pre-existing status, no new infection occurs. Thus, the magistrate was obliged by law to conduct an inquiry into special circumstances immediately after conviction and before passing sentence. This procedure – canvassing special circumstances post-verdict but prior to mitigation and sentence – is well established in our courts. See, *State* v *Kambuzuma* 2015 ZWHHC 175. Both the accused and the prosecution should be given the opportunity to make representations or lead evidence on any special circumstances peculiar to the case. Only once that inquiry is concluded can the court determine the appropriate sentence. If no special circumstances are found, a minimum of 10 years must be imposed, but if special

circumstances are found and recorded, the court may then consider the usual mitigating and aggravating factors and impose a lesser sentence in line with section *70's penalties.*

In S v *Guvheya* [2024] ZWHHC 334, a case very similar to the present one, the High Court emphasized that when dealing with a young person sexual offence involving HIV risk, *"the starting point had to be an interrogation of the question of special circumstances,"* and this inquiry *"had to precede the canvassing of all other general mitigation and aggravation."*. The court noted that the offender in that case was facing the mandatory ten-year term, and thus legal representation and a full special circumstances hearing were arranged on review to ensure justice. That exemplifies the crucial step the trial magistrate in our case regrettably skipped. By failing to call for special circumstances, the magistrate here neither applied the mandatory sentence nor gave the accused an opportunity to avoid it lawfully – a serious procedural irregularity per the *Kambuzuma* case supra.

Magistrates' Sentencing Jurisdiction and the Error in this Case

It is a fundamental principle that the Magistrates' Court is a creature of statute, having only the jurisdiction and powers conferred upon it by law as emphasized in *S* v *Ncube* HB 6 /24. In criminal matters, magistrates are limited in the severity of sentences they may impose. For an ordinary magistrate (as opposed to a regional magistrate), the Magistrates Court Act [*Chapter 7:10*] provides that the maximum sentence on a summary trial is generally 2 years' imprisonment (or a fine up to level 7), and up to 4 years (or fine level 9) if the matter is referred to the magistrate by the Prosecutor-General for sentence under special authorization. Certain statutes or statutory provisions can extend a magistrate's jurisdiction for particular offenses (for example, section 51 of the Magistrates Court Act grants magistrates enhanced jurisdiction up to 7 years for specific crimes like public violence, and unlimited jurisdiction for a few particular offenses such as stock theft under section 114 of the Criminal Law Code). Unless such an extension is expressly provided by law, a magistrate cannot exceed the ordinary sentencing limits. As was succinctly stated in *S* v *Ncube supra*, *"The fact that [a statute] prescribes a minimum mandatory sentence of five years does not automatically give an ordinary magistrate sentencing jurisdiction that she does not possess. Her sentencing jurisdiction can only be increased or extended by legislation."*. In short, a magistrate cannot assume greater powers simply because an offense carries a heavy mandatory sentence. The case should instead be heard or sentenced at a level of court with sufficient jurisdiction.

In the present matter, if no special circumstances were found, section 80 demanded a minimum 10-year prison term, which far exceeds the sentencing authority of a magistrate.

Even a regional magistrate in Zimbabwe is typically limited to imposing up to 10 or 20 years for certain offenses (depending on rank and charge), whereas an ordinary or senior magistrate's cap is much lower. Here the trial was handled by a magistrate who did not have regional status. Thus, one of two errors (or both) occurred: (1) the matter ought to have been referred to a higher court (or a regional magistrate) for sentencing because of the potential 10-year minimum, and/or (2) the magistrate treated the case as if special circumstances were present (hence imposing only 10 months) without actually conducting the required inquiry on the record. Either way, the sentence imposed – 10 months in place of the statutorily required 10 years – was not in accordance with the law and beyond the magistrate's proper jurisdiction.

Our superior courts have dealt with analogous scenarios. In *S* v *Ncube* (HB 6-24), an ordinary magistrate convicted an accused of possessing gold without a license, an offense which by law carried a mandatory minimum 5-year sentence absent special circumstances. The magistrate went on to impose the 5-year term, believing the mandatory nature authorized her to do so, despite her normal jurisdiction being capped at 4 years. On review, the High Court (DUBE-BANDA J, with KABASA J concurring) held this to be a jurisdictional irregularity: *"The magistrates court cannot possess jurisdiction beyond what the Magistrates Court Act or other statutes give to it… The fact that [the Act] prescribes a minimum sentence of five years does not automatically give an ordinary magistrate sentencing jurisdiction that she does not possess."*. The proper course, the Court emphasized, was for the magistrate to stop the proceedings and remit the case for trial or sentencing in a higher court once it became clear that a sentence above her jurisdiction was warranted. In terms of section 54 of the Magistrates Court Act, if at any stage of a trial it appears to the magistrate that the offense merits a punishment beyond their jurisdiction, the magistrate *"shall stop the trial and remit the case to the Prosecutor-General"* for direction (often to have the accused indicted in the High Court or transferred to a regional magistrate). Likewise, section 225 of the Criminal Procedure and Evidence Act [*Chapter 9:07*] provides a mechanism for the Prosecutor-General to facilitate bringing the matter before an appropriate court for sentence. In *S* v *Ncube*, because the magistrate failed to follow these procedures and exceeded her authority, the High Court set aside the improper sentence and remitted the matter *"to the magistrate to proceed in terms of the law."*. The High Court explicitly confirmed the conviction (which was otherwise proper) but quashed the sentence and directed the trial court to re-sentence the

accused afresh according to law, after either finding special circumstances or ensuring the case is handled by a court with power to impose the mandatory term.

Similarly, in the earlier case of *S* v *Spencer Mpofu* (HB 126-09), an ordinary magistrate had imposed sentences of 5 years' imprisonment on multiple robbery counts – well beyond her normal jurisdiction. The High Court (NDOU J) in review reprimanded the magistrate for *"assum[ing] jurisdiction that she does not have,"* noting she wrongly believed her extended jurisdiction for certain property offenses would also cover robbery. The court reiterated that magistrates must strictly adhere to their statutory limits, and where a harsher sentence seems justified, the proper procedure is to refer the matter for sentence by a higher authority. The High Court in Mpofu also set aside the irregular sentence and remitted for sentencing *de novo* by a competent court. These authorities underscore that a sentence imposed without jurisdiction is a nullity in law, and the High Court will not hesitate to intervene and correct such errors on review.

Special Circumstances and the Present Case

Applying the above principles to the present case, it is evident that the trial magistrate's sentence cannot stand. The magistrate failed to recognize the mandatory sentencing provisions of section 80 and did not conduct any inquiry into special circumstances. By sentencing the offender to only 10 months, the magistrate effectively bypassed a law-imposed minimum sentence of 10 years without any legal basis for doing so. This was not a mere technical oversight but a substantial departure from the requirements of justice. As the High Court observed in Ncube's case, a sentence that is not in accordance with a mandatory statutory requirement is "not in accordance with real and substantial justice". The proceedings in regard to sentencing were therefore irregular.

It should be stressed that confirming the conviction while vacating the sentence is appropriate here. There is no indication of any defect in the conviction itself – the accused knowingly pleaded guilty to the charge and the essential elements were adequately canvassed on the record. Consent of the young complainant is not a defence to a section 70(1)(a) charge, and the accused admitted knowing or risking that she was under the age of consent. The conviction is thus proper and must be upheld. It is only the sentence that was imposed illegally (beyond jurisdiction and without following the law), and thus the High Court's intervention is confined to the sentencing stage.

Looking forward, the case must return to the trial court or a court of competent jurisdiction for correct sentencing proceedings. At that stage, the magistrate will need to

canvass special circumstances afresh with the accused. The accused should be informed of his right to present any evidence or arguments as to why the mandatory 10-year term should not be imposed, and the State should be given an opportunity to respond.

Ultimately, what constitutes "special circumstances" is a matter of fact and degree, to be decided on a case-by-case basis. The phrase is given a wide interpretation, encompassing circumstances related to how the offense was committed as well as the offender's personal situation – but only those factors that are truly out of the ordinary for the offence. Routine personal hardships or generic mitigating factors, such as being a first offender, showing remorse, having family dependents, etc., would not normally qualify as special since they are common to many cases. However, an unusual combination of factors can rise to the level of special circumstances. The Supreme Court in *S* v *Mugangavari* 1984 (1) ZLR 80 (S) noted that while no single ordinary mitigating factor may suffice, *"mitigatory factors if considered cumulatively can constitute special circumstances".* In *S* v *Kambuzuma* 2015 (HH 175-15), a stock theft case, the High Court accepted the trial magistrate's finding of special circumstances where the accused had gone for eight years without pay, was effectively abandoned by his employer, and sold the cattle to meet pressing family needs – a scenario deemed out of the ordinary. In our case, the task for the sentencing court is to evaluate all relevant factors – including the complainant's status and any other peculiar features – and decide whether they collectively amount to special circumstances warranting less than ten years. If such circumstances are found, they must be meticulously recorded on the proceedings and a proportionate sentence under section 70 which carries no fixed minimum in the absence of section 80 can then be imposed. If, on the other hand, no special circumstances are established, the law mandates a sentence of no less than 10 years' imprisonment.

Disposition

In the result, it is ordered as follows –

1. The conviction of the accused for contravening section 70(1)(a) of the Criminal Law [Codification and Reform] Act [*Chapter 9:23*] is confirmed.
2. The sentence of 14 months' imprisonment imposed by the magistrate on 02 June 2025 is set aside as irregular and of no force.
3. The matter is remitted to the magistrates' court for sentencing afresh. The magistrate is directed to proceed in terms of section 80 of the Criminal Law Code

MAMBARA J: …….

DEMBURE J: …….. **Agrees**